

Salelles — De materiis Tribunalium S. Inquisitionis, tom. I, lib. I cap. VII, Regula LXV (Rome 1651)

Latin–English parallel text: Regula LXV entire, nn. 259–278 (printed 135–137)

<i>Latin</i>	<i>English</i>
BLOCK A — Regula LXV, nn. 259–278 (printed 135–137)	BLOCK A — Regula LXV, nn. 259–278 (printed 135–137)
<i>An Papa solus sit alia norma fidei uiua? & qualiter in aliquibus casibus?</i>	<i>Whether the Pope alone is another living rule of faith? And in what manner in certain cases?</i>
REGVLA LXV.	RULE LXV.
259 PRæter propositam, necessario assignatur alia fidei norma, uiua, seu animata, nempe Summus Pontifex, verus Christi Vicarius, per se solum absq concilio vllo particulari, aut generali, quatenus ex Cathedra definit, & ordinat, estq. tātæ certitudinis, & infallibilitatis, vt nullo modo errare possit, non solum in exprimendis quibuscūq. fide diuina credēdis; sed in manifestādīs etiam, & tradendis præceptis seu rebus moralibus pro vniuersa Ecclesia Cathol[1]	259 BESIDES the one already set forth, there is necessarily assigned another rule of faith, a living, or animate, rule of faith, namely the Supreme Pontiff, the true Vicar of Christ, by himself alone without any council, whether particular or general, inasmuch as he defines and ordains from the Chair; and he is of such great certainty and infallibility that he can in no way err, not only in expressing whatsoever things are to be believed by divine faith, but also in making known and handing down precepts, or moral matters, for the universal Catholic Church[1]
260 DE hac Fidei norma copiosius præ cæteris agit Castrus Palao tract. 4. de fide disp. 1. pun. 5. p. 6. §§. longiusculos (cū in alijs compēdiosius, soleat procedere) qui approbat omnino nostram Regulam, quoad omnes eius partes. Necessitas huius normæ inde facile ostēditur, quia cū Cōcilia generalia nō sine magno dispendio, & ingenti difficultate cogi possint, ac proinde raro cogantur, cumq. aliunde nō raro, sed frequenter diuersa occurrāt proponenda, ordinanda, & decidenda pro tota Ecclesia, circa varia capita, quæ statim adducam simpliciter oportuit, ipsi Ecclesiæ prouideretur, vt fuit de facto prouisum à Christo Domino, de regula aliqua fidei uiua, semper præsentī.	260 OF this rule of faith Castro Palao treats more copiously than the rest, tract. 4. de fide disp. 1. pun. 5. p. 6., in rather long sections (whereas in other matters he is wont to proceed more compendiously), and he approves our Rule altogether, as to all its parts. The necessity of this rule is easily shown from this: that since general councils cannot be convened without great expense and enormous difficulty, and accordingly are rarely convened, and since on the other hand there arise not rarely but frequently various matters to be proposed, ordained, and decided for the whole Church, concerning the various heads which I shall presently adduce, it was simply needful that provision be made for the Church herself, as was in fact provided by Christ our Lord, with some living rule of faith, always present.
261 Quod autem hæc norma credendi sit ipsius Ecclesiæ caput, seu Romanus Pontifex, est certum de fide, quia Petro, & successoribus eius tribuit Christus Dominus potestatem, seu iurisdictionem pascendi Ecclesiam, Ioann. 21. <i>Pasce oues meas</i>,	261 But that this rule of belief is the head of the Church herself, that is, the Roman Pontiff, is certain of faith, because to Peter and to his successors Christ our Lord granted the power, or jurisdiction, of feeding the Church, John 21: <i>Feed my sheep</i>, chiefly by interpreting the scriptures and by

Latin

præcipue interpretando scripturas, & proponendo veritates credendas, & **262** sub obligatione ipsas credendi. Atque hinc sequitur, quod hæc potestas habeat necessario adiunctam infallibilitatem, & assistentiam Spiritus sancti, ita vt ille non possit errare: hocque firmissimum habet fundamentum in promissionibus Christi Domini, nempe illa Matth. 16. *Super hanc petram ædificabo Ecclesiam meam, & portæ inferi non præualebunt aduersus eam*; præualerent quidem, & corrueret ædificium, si Papa posset errare, dum ex cathedra loquitur in definiēdis, & proponendis pro tota Ecclesia. Item illa promissione, Luc. 22. *Ego rogaui pro te, Petre, vt non deficiat fides tua*, quod intelligitur non solum de ipso D. Petro, sed etiam de successoribus eius, vt exponunt S. Leo Papa ser. 1. & 2. de assumptione sua, & Innoc. III. in cap. Maiores de baptismo, & multi alij Pontifices in suis epist. decretalibus:

263 Insuper quod Papa habeat dictā iurisdictionem, & potestatem independentem omnino à Concilio Generali, atq. per hanc prædicto modo norma credendi constituatur, patet ex regula fidei præcedenti, nempe ex traditione diuina, & ex perpetuo consensu Ecclesiæ, ac continuo Summorum Pontificum vsu definiendi res fidei, interpretandi scripturas, & præcepta morum ipsi Ecclesiæ proponendi. Superuacaneum esset nunc ducta plurium exemplorum serie, cuiusq. Pontificis per varia sæcula ea exprimere, & rem hanc magis perspicuam reddere, sat sit vnū, vel alterum nostri temporis attingere, & pauca, circa quæ videtur posse esse aliquale dubium aliquantulum expendere.

264 Et quidem circa lectionem, & interpretationem diuinarum Scripturarum nullus est dubitandi locus, cum Petro, & cuius ex successoribus eius, dicitur Luc. 5. *Duc in altum*, vt mysticè aliqui exponunt, in profundum sacræ Scripturæ ad congruum eius sensum eruendū & legitimam ipsius lectionem assignandam.

265 Vnde Sixtus V. vniuersa Biblia sacra vulgatæ editionis recognoscere iussit, & sic recognita, Clementis VIII. auctoritate fuerunt edita, iuxta quam recognitionem, & editionem a dictis Pontificibus tanquam à regula fidei, vniuersa Ecclesia, vt certa de fide ea recepit.

English

proposing truths to be believed, and **262** under an obligation of believing them. And from this it follows that this power has necessarily joined to it infallibility and the assistance of the Holy Spirit, so that he cannot err; and this has a most firm foundation in the promises of Christ our Lord, namely in that one of Matt. 16: *upon this rock I will build my Church, and the gates of hell shall not prevail against it*; they would indeed prevail, and the building would fall, if the Pope could err while he speaks from the chair in defining and proposing for the whole Church. Likewise in that promise, Luke 22: *I have prayed for thee, Peter, that thy faith fail not*, which is understood not only of St. Peter himself, but also of his successors, as St. Leo the Pope, Sermons 1 and 2 on his own elevation, and Innoc. III. in cap. *Maiores de baptismo*, and many other Pontiffs in their decretal letters expound:

263 Furthermore, that the Pope has the said jurisdiction and power altogether independently of a General Council, and that by this he is constituted the rule of belief in the aforesaid manner, is clear from the preceding rule of faith, namely from divine tradition, and from the perpetual consent of the Church, and from the continual practice of the Supreme Pontiffs in defining matters of faith, in interpreting the scriptures, and in proposing precepts of morals to the Church herself. It would be superfluous now to set these things out by drawing up a series of many examples, and those of each Pontiff through the various centuries, and so to render this matter more evident; let it suffice to touch on one or another of our own time, and to weigh a little a few points about which there seems room for some doubt.

264 And indeed concerning the reading and the interpretation of the divine Scriptures there is no room for doubting, since to Peter, and to each of his successors, it is said, Luke 5: *Launch out into the deep*, as some expound it mystically, into the depth of sacred Scripture, to draw out its fitting sense and to assign the legitimate reading of it.

265 Hence Sixtus V ordered the whole of the Sacred Bible of the Vulgate edition to be revised, and, so revised, it was published by the authority of Clement VIII; and in accordance with that revision and edition, as coming from the said Pontiffs as from a rule of faith, the universal Church received it as certain of faith.

Latin

266 Nullus item dubitandi locus de dicta iurisdictione Pontificum, & de ipsorum regula fidei circa ritum administrationis Sacramentorum, maximè matrimonij, & circa declarationem inhabilitatis personarum ad ipsum contrahendum[2] Hinc idem Sixtus V. per constitutionem 59. incipientem, *Cum frequenter*, declarauit inhabiles quosuis Eunuchos, vtroque testiculo carentes, & quod ipsi matrimonium nullo modo contrahere valeant; item declarauit matrimonia prius ab ipsis contracta fuisse, & esse nulla: quæ declaratio certa de fide habetur ab vniuersa Ecclesia Catholica; tametsi prius nō deessent DD. Catholici, vt Medina relatus à F. Basilio Poncio, tract. de impedimentis matrimonij cap. 33. §. 1. qui tenerent valida esse talia matrimonia, & posse contrahi à dictis Eunuchis.

267 Verum quid circa Canonizationem, & Beatificationē Sanctorum est ne Papa regula fidei, ita vt non possit errare? Est quidem, & circa vtrumque nequit vllo modo in errorem incidere. Ita D. Thomas quolib. 9. art. vlt. id rectè docet; & quamuis neque ipse, neque alius ex antiquis Doctoribus, qui de canonizandis Sanctis ex professo tractarunt, aliquid de beatificatione expresserit; sine dubio tamen hanc sub illa comprehendere voluerunt; cum eadē certitudine tenendum sit Pontificem esse liberum ab errore in beatificatione alicuius Sancti ac est in canonizatione, & æquè temerarium, ac scandalosum esse iudicandum, si quis asserat ipsum in quauis earum posse errare, quia absq. fundamento contra rectam morum institutionem **268** id asserere. Hoc autem maximè ita se habet, si Beatificatio sit, qualis sæpius esse solet cum concessione, vt Missæ sacrificium in honorem Beatificati celebretur; tradit ex mente aliorum citatus Palao §. 5.

269 Qui bene differentiam inter beatificationē, & canonizationem, declarando quid vtraque sit, in hoc tantum assignat, quod illa sit facultas, & licentia concessa alicui Prouinciæ speciali, aut Ecclesiæ, aut Religioni, vt aliquē tanquam Sanctum, & in Cælis existentem colat, cum expressione cultus, quo venerandus est, nempe Missæ sacrificio, orationibus, processionibus publicis, votis, eius inuocatione, & imaginis gestatione; cum limitatione istorum aliqua, **270** vel nulla. Canonizatio verò sit licentia cōcessa

English

266 There is likewise no room for doubting concerning the said jurisdiction of the Pontiffs, and concerning their rule of faith with regard to the rite of the administration of the Sacraments, above all of matrimony, and with regard to the declaration of the incapacity of persons for contracting it[2] Hence the same Sixtus V, by constitution 59, beginning *Cum frequenter*, declared incapable any eunuchs lacking both testicles, and declared that they are in no way able to contract matrimony; likewise he declared that the marriages previously contracted by them had been, and are, null: which declaration is held as certain of faith by the universal Catholic Church; although before that there was no lack of Catholic Doctors, such as Medina, reported by Fr. Basilio Ponce, tract. de impedimentis matrimonij cap. 33. §. 1., who held that such marriages were valid, and could be contracted by the said eunuchs.

267 But what of the Canonization and Beatification of Saints: is the Pope a rule of faith there also, so that he cannot err? He is indeed, and concerning both he can in no way fall into error. So St. Thomas, Quodlibet 9, art. ult., rightly teaches; and although neither he, nor any other of the ancient Doctors who treated expressly of the canonizing of Saints, said anything of beatification, yet without doubt they meant to comprehend the latter under the former; since it is to be held with the same certainty that the Pontiff is free from error in the beatification of any Saint as he is in canonization, and that it must be judged equally rash and scandalous if anyone should assert that he can err in either of them, because it is without foundation, and against the right ordering of **268** morals, to assert this. And this holds above all if the Beatification be such as it more often is, with a concession that the sacrifice of the Mass be celebrated in honour of the one beatified; so Palao, cited above, hands down from the mind of others, §. 5.

269 He indeed well marks out the difference between beatification and canonization, declaring what each of them is, in this alone: that the former is a faculty and licence granted to some particular Province, or Church, or religious order, that it may venerate someone as a Saint, and as existing in heaven, with an expression of the cult with which he is to be venerated, namely by the sacrifice of the Mass, by prayers, by public processions, by vows, by his invocation, and by the carrying of his image; with some limitation of these, **270** or none. But canonization is a licence granted not to

Latin

non alicui Prouinciæ speciali; sed vniuersæ Ecclesiæ aliquem vt Sanctum venerādi, eo cultu, & veneratione, qua solent Sancti venerari, idem Castrus Palao totidem ferè verbis.

271 Quid prætera[3] de approbatione Religionum, potest ne circa hanc Pontifex errare? vnico verbo respondeo cum eodem Castro Palao §. 6 cum Valentia disp. 1. q. 1. punct. 7. §. 4. & cum alijs (Quidquid Bañes 2. 2. q. 1. art. 10. dub. 8. absque firmo fundamento in contrarium dicat) quod simpliciter loquendo in approbatione cuiusuis Religionis, quoad substātiaalia saltē eius cōstituentia statū Religionis semper Papa **272** sit ab omni errore immunis. Ratio est quia si ille acceptaret religionem, quā perpēsīs omnibus circumstantijs deberet reijcere, obligaret Ecclesiam ad rem aliquā, quæ ipsi Ecclesiæ nō in ædificationē, sed in destructionē cederet, & contra morū honestatē, quod nō est credendū Spiritum sanctū permissurum; ergo vt Ecclesia non destruatur, neq. erret, iudicādum est Papā in approbatione Religionis non posse errare, & consequenter circa talem approbationem ipsum esse certā, & infallibilem normā credendi.

273[4] Dixi quoad substantialia, & constituentia statum Religionis; nam quoad accidentalialia, vt quoad multiplicationem præceptorum, aut nimium rigorem pœnarum, sicut quoad alia accidentalialia extra Religionem in regimine Ecclesiæ, non est inconueniens committi ab eo aliquem humanum defectum, vt tradit Suarez **274**[5] vbi supra sect. 8. Hinc sæpe videmus, vt quod circa talia accidentalialia vnus Pontifex ordinauit, vel disposuit, ab alio reuocetur, aut **275** saltem limitetur. Quamquam nota huiusmodi reuocationem, vel limitationem inde non raro prouenire, quod in vna circumstantia temporis, vel loci id iudicetur Ecclesiæ, vel Religioni non expediens, aut inconueniens, quod **276** in altera censebatur expedire. Quæ notatio etiam in substantialibus, quandoque locum habet, nec mirum à posteriori Pontifice dissolui aliquam Religionem ob eius relaxationem, vel ob aliam causam, quæ ab alio rectè, & conuenienter absque vllo errore fuerat approbata.

277 Ad infallibilitatem normæ credendi in perna[6] Summi Pontificis magis indicandam solet hic discuti ab aliquibus illud graue dubium, an sit de fide, quod hic homo, qui pro tempore

English

some particular Province, but to the universal Church, of venerating someone as a Saint, with that cult and veneration with which the Saints are wont to be venerated: the same Castro Palao, in almost so many words.

271 What further[3] of the approval of religious orders: can the Pontiff err concerning this? In a single word I reply, with the same Castro Palao §. 6, with Valencia disp. 1. q. 1. punct. 7. §. 4., and with others (whatever Bañez, 2. 2. q. 1. art. 10. dub. 8., may say to the contrary without firm foundation), that, simply speaking, in the approval of any religious order, at least as to the substantials constituting the state of religion, the Pope **272** is always immune from all error. The reason is that if he were to accept a religious order which, all the circumstances being weighed, he ought to reject, he would bind the Church to something which would turn out not to the building up of the Church herself but to her destruction, and against the honesty of morals, which it is not to be believed that the Holy Spirit would permit; therefore, that the Church be not destroyed, nor err, it must be judged that the Pope cannot err in the approval of a religious order, and consequently that with regard to such approval he is a certain and infallible rule of belief.

273[4] I said, as to the substantials, and the things constituting the state of religion; for as to accidentals, such as the multiplication of precepts, or an excessive rigour of penalties, just as with regard to other accidentals outside a religious order in the governance of the Church, it is not unfitting that some human defect be committed by him, as Suarez **274**[5] hands down ubi supra sect. 8. Hence we often see that what one Pontiff has ordained or disposed concerning such accidentals is revoked by another, or **275** at least limited. Yet note that a revocation or limitation of this kind not rarely arises from this, that in one circumstance of time or of place that is judged not expedient, or unfitting, for the Church or for a religious order, which **276** in another was reckoned to be expedient. Which observation sometimes has place in substantials also; nor is it any wonder that some religious order should be dissolved by a later Pontiff on account of its relaxation, or for some other cause, which had been approved by another rightly and fittingly without any error.

277 To indicate more fully the infallibility of the rule of belief in the person[6] of the Supreme Pontiff, that weighty doubt is wont to be discussed here by some: whether it is of faith that this man, who for the time being

Latin

gubernat Ecclesiam Dei, sit verus Papa? Circa quod duæ sunt hinc inde oppositæ Doctorum sententiæ: semper placuit sub distinctione resolutio, quam 35. abhinc annis defendi publicè in templo Collegij Barchinonensis propositis à me thesibus Theologicis, vt assolet quotannis pro honore Collegij, argumentante contra elucidandæ magis veritatis gratia R. P. Vincentio Sigala, tunc Sanctissimi Clementis Octauæ Nuncio extraordinario ad Regem Catholicum Philippum III. nempè quod sit de fide hunc hominem esse verum Summum Pontificem, quando sufficienti consensu totius Ecclesiæ receptus est, & ita approbatus, vt omnes illi obedire teneantur, maximè in recipiendis fidei definitionibus, & ordinationibus circa mores totius Ecclesiæ; secus verò antea: quod patet, quia tempore schismatum ferè semper est res prorsus incerta, quisnam caput Ecclesiæ, **278** & cuinam tunc obediendum. Atque hactenus de Pontifice Summo secundum hanc tantum considerationem, quod sit fidei regula: secundum alias, copiosa valdè est eius tractatio, vide apud Suar. disp. 10. de fide.

English

governs the Church of God, is the true Pope? Concerning which there are two opposed opinions of the Doctors on the one side and the other: I have always been pleased by the resolution under a distinction, which thirty-five years ago I defended publicly in the church of the College of Barcelona, in the theological theses proposed by me, as is customary every year for the honour of the College, with the Rev. Fr. Vincenzo Sigala, then nuncio extraordinary of the Most Holy Clement VIII to the Catholic King Philip III, arguing against, for the fuller elucidation of the truth: namely, that it is of faith that this man is the true Supreme Pontiff, when he has been received by the sufficient consent of the whole Church, and so approved that all are bound to obey him, above all in receiving definitions of faith and ordinances concerning the morals of the whole Church; but otherwise before that: which is clear, because in time of schisms it is almost always an altogether uncertain matter who is head of the Church, **278** and whom one must then obey. And thus far concerning the Supreme Pontiff according to this consideration only, that he is a rule of faith: according to the others, the treatment of him is very copious indeed; see Suarez, disp. 10. de fide.
